

Legal Report – Ravi Kumar v. BESCOM

1. Cause of Action

- ****Complainant****: Ravi Kumar, Bengaluru LT consumer
- ****Respondent****: Bangalore Electricity Supply Company (BESCOM)
- ****Event****: 7-day outage from 3 March 2026; complaint No. 456789 acknowledged but unresolved
- ****Principal Claim****: Deficiency in service under Consumer Protection Act 2019 (CPA 2019)

2. Applicable Law

- Consumer Protection Act 2019 – § 2(11) & § 35 (deficiency in service)
- Karnataka Electricity Supply Code 2021 – Cl. 8.4 (24-h restoration target); Cl. 9.3 (compensation cap **■100/day**)
- Karnataka Electricity Regulatory Commission (Standard of Performance) Regulations 2021

3. Merits Assessment

Strong Points

- Logged complaint creates statutory duty; burden shifts to BESCOM to prove restoration or consumer fault (CPA 2019 § 35)
- Supply Code imposes 24-h restoration target; 7-day failure is prima-fie breach
- No statutory notice required for outage grievances; immediate recourse under CPA or Electricity Ombudsman

Weak Points

- Citizen Charter is aspirational; enforceability limited by force-majeure clause
- Compensation capped at **■100** per day under Cl. 9.3; no additional head for mental agony or interest
- Tortious negligence claim difficult: must prove causation, mitigation, and strict quantification

4. Evidence Checklist

- [] Copy of complaint acknowledgment/email/SMS showing complaint No. 456789 dated 3-3-2026
- [] Photographs/time-stamped logs of outage; neighbour affidavits; SCADA data request
- [] Employer letter/contract/invoices/bank statements evidencing work-from-home income loss
- [] Record of follow-up calls/emails to BESCOM call centre
- [] Any BESCOM outage notification or social-media posts confirming area fault

5. Relief Sought

- a. Direction to BESCOM to permanently restore supply (already done – confirm)
- b. Compensation @ **■100/day** × 7 days = **■700** under Supply Code Cl. 9.3
- c. Costs of proceedings and any further relief deemed fit

6. Forum Options

- District Consumer Disputes Redressal Commission, Bengaluru Urban (pecuniary jurisdiction up to ■1 crore)
- Karnataka Electricity Ombudsman (limited to Code-mandated compensation)
- Filing within 2 years from date of deficiency (CPA 2019 § 69)

7. Conclusion

The complaint number and 7-day outage establish a service deficiency. While large damages are unlikely, consumer fora will award the statutory ■700 plus costs. Strengthening documentary proof of outage and income loss will maximise prospects.